

24TRCV02641 24TRCV02641

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Case Number: 24TRCV02641 Hearing Date: September 8, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

GRISELDA PINTO

, et al.;

Plaintiffs,

vs.

VENTAS

INC.

, et al.;

Defendants.

Case

No.:

24TRCV02641

Hearing

Date:

September
8, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

CROSS-DEFENDANT

HARBOR BUILDING MAINTENANCE, INC.'S MOTION FOR LEAVE TO FILE AND SERVE
COMPULSORY CROSS-COMPLAINT

MOVING PARTY: Cross-Defendant, Harbor Building
Maintenance, Inc.

RESPONDING

PARTY: Plaintiff, Griselda Pinto

(1)

Cross-Defendant

Harbor Building Maintenance, Inc.'s Motion for Leave to Filed and Serve
Compulsory Cross-Complaint is GRANTED pursuant to Code of Civil Procedure
sections 428.10 and 428.50.

The Court considers the moving papers filed on July 23, 2026, the
opposition brief filed on August 25, 2026, and the reply brief filed on August 31,
2026.

BACKGROUND

Factual Background

On August 7, 2024, plaintiff Griselda
Pinto ("Plaintiff") filed their Complaint against defendants Ventas, Inc.,
NHP/PMB Kenneth E. Watts Medical Plaza, LLC ("NHP"), PMB Real Estates Services

("PMB Real Estates"), and DOES 1 through 100. The Complaint includes two causes of action: (1) Premises Liability and (2) Negligence.

On September 6, 2024, PMB Real Estates filed a cross-complaint against cross-defendants ROES 1 through 20. The cross-complaint includes the following causes of action: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On March 5, 2025, NHP filed a cross-complaint against cross-defendants ROES 21 through 30. This cross-complaint includes the following causes of action: (1) Equitable Indemnity; (2) Implied Contractual Indemnity; (3) Express Contractual Indemnity; (4) Comparative Contribution; and (5) Declaratory Relief.

On February 26, 2026, PMB Real Estates filed an amendment to the cross-complaint, naming Harbor Building Maintenance, Inc. ("Harbor Building") as ROE 1.

On the same date, NHP also amended its cross-complaint to name Harbor Building as ROE 21.

On April 2, 2026, at 1:46 p.m., NHP and PMB Real Estates served the Harbor Building with the summons and two cross-complaints.

On May 7, 2026, Harbor Building filed an answer to NHP's cross-complaint.

LEGAL STANDARD

Code of Civil Procedure section 428.10, subdivision (b), provides, as follows: "A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: ... Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him."

Code of Civil Procedure section 428.50 provides, as follows: "(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. (b)

Any other cross-complaint may be filed at any time before the court has set a date for trial. (c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action."

A cross-complaint is compulsory if it is transactionally related to the subject matter of the complaint. (Code Civ. Proc., § 426.10.) "To be considered a compulsory cross-complaint, a related cause of action must have existed at the time of the service of [the] answer to [the] complaint." (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864 (Crocker).)

The late filing of a motion for leave to file a compulsory cross-complaint, "absent some evidence of bad faith is insufficient evidence to support denial of the motion." (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 101 (Silver).) "Permission to file a permissive cross-complaint is solely within the trial court's discretion." (Crocker, supra, 221 Cal.App.3d at p. 864.)

DISCUSSION

Harbor Building's proposed cross-complaint is compulsory. The cross-complaint arises from the same "transaction, occurrence, or series of transactions or occurrences" alleged in Plaintiff's Complaint, specifically regarding the janitorial "services that Plaintiff alleges she was performing at the Watts Medical Plaza" at the time of her reported injury.

(Declaration of Michael D. Campion ("Campion Decl."), ¶ 7.) The proposed cross-complaint encompasses a single cause of action for (1) Express Indemnity, which is grounded in the contract between S&M Maintenance and Harbor Building. (Campion Decl., Exhs. A, C.) Harbor Building asserts that S&M Maintenance "was contractually responsible for the cleaning and maintenance of the Premises and is ... liable for indemnity and contribution on that basis." (Motion, p. 3:24-25.) Furthermore, Plaintiff is alleged to have performed the cleaning and maintenance of the premises as part of this

contractual agreement. (Motion, p. 5:11-14; Campion Decl., ¶ 7.)

Under Code of Civil Procedure

section 426.50, courts must liberally grant leave to file a cross-complaint where a party acted in good faith and denial would result in forfeiture of claims. The burden is on the opposing party to demonstrate a “strong showing of bad faith” to justify denial. (Foot’s Transfer & Storage Co. v. Superior Court (1980) 114 Cal.App.3d 897, 902 (Foot’s).) “Bad faith is defined as [t]he opposite of good faith, generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.] [Citations.] [Citation.]” (Silver, supra, 217 Cal.App.3d at p. 100.) However, “delay only may constitute the requisite bad faith to preclude the granting of the request to file a cross-complaint when it appears that a delayed cross-complaint, if allowed, would work a substantial injustice to the opposing party and would prejudice that party’s position in some way.” (Foot’s, supra, 114 Cal.App.3d at p. 903.)

Plaintiff asserts that this motion should be denied due to Harbor Building’s unreasonable delay in its filing, which has resulted in prejudice. (Motion, pp. 2:4-7:2.) The Court partially agrees.

The Court finds that Harbor

Building delayed in bringing this motion.

While the Court acknowledges that Harbor Building was served on April 2, 2026, and subsequently filed its answer to one of the cross-complaints on May 7, 2026, it is evident that Harbor Building was aware of its subcontracting with another entity to provide janitorial services at least one month prior to the submission of this motion. As highlighted by Plaintiff, on June 22, 2026, Harbor Building admitted that (1) “Harbor had a contract with NHP for janitorial services, and Harbor in turn had subcontracted to another business entity for janitorial personnel[;]” and (2) “Harbor contends that it had contracted for janitorial services with another business entity. Not surprisingly, this

entity is not yet in the lawsuit and Harbor most likely will seek its own Cross-Complaint against it, if indeed accurate.” (Motion, p. 2:13-21; Declaration of Michael L. Justice (“Justice Decl.”), ¶ 2, Exh. 1.)

By June 22, 2026, Harbor Building was at least aware that another party should be included via a cross-complaint. Nevertheless, Harbor Building opted not to file for leave to file a cross-complaint for an additional month, fully cognizant that the trial was merely three months away. Harbor Building attributes some of the delay to Plaintiff, asserting that “Plaintiff’s counsel himself in opposing the Motion to continue the trial date made incorrect statements that Plaintiff was Harbor’s employee, as opposed to SMC’s employee. This delayed Harbor’s counsel’s understanding of the involvement of each party in this action for a while, as counsel had to verify for certain who the Plaintiff worked for. Plaintiff herself in deposition testimony had been less than clear on this point of whom she worked for.” (Reply, p. 3:5-9.)

The Court finds this argument to be unpersuasive. Regardless of the alleged confusion on the part of Harbor Building, the entity could have promptly reviewed its own records to verify whether Plaintiff was indeed its employee and examined the relevant contract to recognize that it had subcontracted the services rendered by Plaintiff through S&M Maintenance.

Furthermore, the Court observes that Harbor Building has articulated the reasons for its delay in filing this motion. The entity asserts, “Harbor filed and served the motion on July 23, 2026, only about 3 weeks after Harbor learned that the Motion to continue the trial date in this action was denied, which necessitated the filing of the subject Motion.”

(Reply, p. 2:25-27.) Consequently,

it appears that Harbor Building understood that a motion for leave to file a cross-complaint would be required prior to the denial of the motion to continue the trial and had planned to file it at a later date. Following the denial of the motion to continue, Harbor Building knew that it had to quickly file this motion. Nevertheless, Harbor Building waited an additional three weeks before filing. The Court suspects that this delay will serve as a basis for the trial continuance that was previously denied.

Consequently, the Court finds that Harbor Building purposefully delayed filing this motion. The central inquiry now is whether granting the motion would result in substantial injustice to Plaintiff and whether it would prejudice her position in some way. The answer is no.

Plaintiff contends that she will experience substantial prejudice, as

the acceptance of the cross-complaint is likely to result in a continuance of the trial, thus further delaying the resolution of her claims through no fault of her own. (Opp., pp. 4:18-5:3.) However, the Court observes that continuing the case to afford Harbor Building and S&M Maintenance the opportunity to file an answer or demurrer, conduct discovery, and prepare for trial does not inherently prejudice Plaintiff's case. Moreover, Plaintiff does articulate how a possible continuance stemming from the Court's granting of this motion would detrimentally impact her case beyond merely delaying the trial. The Court does not regard this situation as constituting a substantial injustice, and, consequently, does not find that Harbor Building has acted in bad faith.

In conclusion, while Harbor Building has delayed in filing this motion, the Court does not find strong evidence of bad faith in its actions. Accordingly, the Court GRANTS Harbor Building's motion for leave to file a cross-complaint.

ORDERS

1) Cross-Defendant

Harbor Building Maintenance, Inc.'s Motion for Leave to File and Serve Compulsory Cross-Complaint is GRANTED.

2) Harbor

Building is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 8, 2026

Tamara
Hall

Judge
of the Superior Court